

2.13 SOLAR ACCESS AND OVERSHADOWING

ADG Development: refer to Part 4A of the ADG.

Objectives

- (a) To ensure daylight access is provided to all habitable rooms.
- (b) To provide adequate ambient lighting and minimise the need for artificial lighting during daylight hours.
- (c) To provide adequate solar access to open spaces.
- (d) To minimise impacts of development on surrounding properties.
- (e) To allow the development of small infill sites where access to direct sunlight is compromised by existing adjacent buildings.

Controls

- (a) Living rooms and private open spaces of at least 70% of dwellings in a development are to receive a minimum of three hours direct sunlight between 9:00am and 3:00pm on June 21.
 - (i) Developments which seek to vary the minimum standards must demonstrate how site constraints and orientation prohibit the achievement of these standards.
 - (ii) Excavation for the purposes of subterranean dwellings, which do not receive the required minimum access to sunlight, is not acceptable.
- (b) New development should not reduce the solar access of solar panels of any property to less than two hours per day in mid-winter except solar hot water and photovoltaic panels to which full solar access must be maintained.
- (c) Direct sunlight to north facing windows of habitable rooms and all private open space areas of adjacent dwellings should not be reduced to less than 3 hours between 9.00am and 3.00pm on June 21.

The numerical guidelines will be applied with the NSW Land and Environment Court Planning Principle for sunlight (in accordance with the case of *The Benevolent Society v. Waverley* [2010] NSWLEC 1082)